IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

In the matter of Application Serial No. 99622110 For the mark: SIRCHARGE Filed: January 29, 2026 Published: June 23, 2026 Siemens Aktiengesellschaft, Opposer, *v.* Christopher Stephen Hilts, Applicant.	Opposition No. [_____]

APPLICANT'S ANSWER AND AFFIRMATIVE DEFENSES TO NOTICE OF OPPOSITION [AND OPTIONAL COUNTERCLAIM FOR RESTRICTION OF REGISTRATION NO. 5790235]

Applicant Christopher Stephen Hilts ("Applicant"), through undersigned counsel, answers the Notice of Opposition (the "Notice") filed by Opposer Siemens Aktiengesellschaft ("Opposer") against Application Serial No. 99622110 (the "Application") for the mark SIRCHARGE ("Applicant's Mark"), and pleads as follows. The numbered paragraphs of Part I correspond to the numbered paragraphs of the Notice. Applicant denies every allegation of the Notice, including any allegation in a heading, an unnumbered paragraph, or the prayer for relief, that Part I does not expressly admit.

Part I: Responses to the Allegations of the Notice

[CONFORM: Notice ¶ 1. Anticipated allegation: Opposer is a German corporation with its principal place of business in Munich, Germany.]

1. Applicant admits that the records of the United States Patent and Trademark Office (the "USPTO") identify Opposer as a corporation of Germany with an address in Munich.

Applicant lacks knowledge or information sufficient to form a belief about the truth of the remaining allegations of this paragraph and therefore denies them.

[CONFORM: Notice ¶ 2. Anticipated allegation: Opposer is a global technology company that offers electric vehicle charging products and services under the SICHARGE mark.]

2. Applicant lacks knowledge or information sufficient to form a belief about the truth of the allegations of this paragraph, including the allegations about Opposer's business and about whether Opposer itself, as distinct from other entities, offers any product or service under SICHARGE in the United States, and therefore denies them.

[CONFORM: Notice ¶ 3. Anticipated allegation: Opposer owns Registration No. 5790235 for SICHARGE, in standard characters, for goods in Class 9 and services in Class 37.]

3. Applicant admits that the USPTO records identify Opposer as the owner of record of Registration No. 5790235 for the mark SICHARGE in standard characters; that the registration issued on the Principal Register on July 2, 2019, on an extension of protection under Section 66(a) of the Trademark Act, 15 U.S.C. § 1141f, of International Registration No. 1404839; and that the registration recites, in Class 9, "Apparatus and instruments for controlling electricity, in particular charging stations for electric vehicles," and, in Class 37, "Installation, repair and maintenance of apparatus and instruments for regulating electricity, installation, repair and maintenance of charging stations for electric vehicles." Applicant lacks knowledge or information sufficient to form a belief about whether the registration is valid and subsisting, or about Opposer's use of the mark, and therefore denies the remaining allegations of this paragraph.

[CONFORM: Notice ¶ 4. Anticipated allegation: Opposer owns Registration No. 7238538 for CHARGEFINITY, in Classes 9, 37 and 42.]

4. Applicant admits that the USPTO records identify Opposer as the owner of record of Registration No. 7238538 for the mark CHARGEFINITY, which issued on December 12, 2023

on an extension of protection under Section 66(a). Applicant lacks knowledge or information sufficient to form a belief about the truth of the remaining allegations of this paragraph, including the allegations about the goods and services and about Opposer's use of the mark, and therefore denies them.

[CONFORM: Notice ¶ 5. Anticipated allegation, if pleaded: Opposer owns a family of marks beginning with SI-.]

5. Applicant denies that Opposer owns a family of marks within the meaning of the law, denies that SI- is recognized by the relevant public as the common characteristic of a family of marks, and denies that SIRCHARGE falls within any such family. Applicant lacks knowledge or information sufficient to form a belief about the number, status, or use of Opposer's SI-formative marks and therefore denies the remaining allegations of this paragraph.

[CONFORM: Notice ¶ 6. Anticipated allegation, if pleaded: Opposer owns Registration Nos. 6784985 and 8161847 (VERSICHARGE and VERSICHARGE BLUE) and Registration No. 8466160 (SIEMENS).]

6. Applicant admits that the USPTO records identify Siemens Industry, Inc. as the owner of record of Registration Nos. 6784985 and 8161847, and Siemens Trademark GmbH & Co. KG as the owner of record of Registration No. 8466160. Applicant denies that Opposer is the owner of those registrations, denies that Opposer may rely on them in this proceeding, and denies the remaining allegations of this paragraph.

[CONFORM: Notice ¶ 7. Anticipated allegation: Opposer's rights in SICHARGE are prior to Applicant's rights.]

7. Applicant admits that the filing date of the Application, January 29, 2026, is later than the date of Registration No. 5790235 and later than the priority date and registration date of Registration No. 7238538 as shown in the USPTO records. Applicant lacks knowledge or

information sufficient to form a belief about Opposer's use of any mark, and denies the remaining allegations of this paragraph.

[CONFORM: Notice ¶ 8. Anticipated allegation: SICHARGE is inherently distinctive, commercially strong, and well known.]

8. Applicant denies the allegations of this paragraph. Applicant specifically denies that SICHARGE is famous or commercially strong, and refers to Part II of this Answer, which states the grounds for the denial.

[CONFORM: Notice ¶ 9. Anticipated allegation: Applicant's Mark SIRCHARGE is confusingly similar to SICHARGE in appearance, sound, meaning, and commercial impression.]

9. Applicant admits only that Applicant's Mark and SICHARGE each end with the word CHARGE. Applicant denies the remaining allegations of this paragraph.

[CONFORM: Notice ¶ 10. Anticipated allegation: Applicant's identified services are identical or closely related to Opposer's goods and services.]

10. Applicant admits that the Application was filed on January 29, 2026 under Section 1(b) of the Trademark Act, 15 U.S.C. § 1051(b), and identifies, in Class 37, "Charging station services for electric vehicles." Applicant admits that the services recited in Class 37 of Registration No. 5790235 are as quoted in the response to paragraph 3 above. Applicant denies the remaining allegations of this paragraph, including that Applicant's services are identical to or legally identical with the goods or services of Opposer.

[CONFORM: Notice ¶ 11. Anticipated allegation: The parties' goods and services travel through the same channels of trade to the same classes of purchasers.]

11. Applicant denies the allegations of this paragraph.

[CONFORM: Notice ¶ 12. Anticipated allegation: Applicant's use and registration of SIRCHARGE is likely to cause confusion, mistake, or deception under Section 2(d) of the Trademark Act, 15 U.S.C. § 1052(d).]

12. Applicant denies the allegations of this paragraph.

[CONFORM: Notice ¶ 13. Anticipated allegation: Opposer will be damaged by registration of Applicant's Mark.]

13. Applicant denies the allegations of this paragraph.

[CONFORM: Notice ¶ 14. Anticipated allegation, if pleaded: Registration of Applicant's Mark is likely to dilute the distinctive quality of Opposer's famous marks under Section 43(c) of the Trademark Act, 15 U.S.C. § 1125(c).]

14. Applicant denies the allegations of this paragraph. Applicant specifically denies that SICHARGE or CHARGEFINITY was famous within the meaning of 15 U.S.C. § 1125(c)(2)(A) before January 29, 2026, and denies that SIRCHARGE is likely to dilute any mark identified in the Notice.

[CONFORM: Notice ¶ 15 and any further grounds. Respond to any claim of non-ownership, lack of a bona fide intention to use the mark in commerce, or voidness of the Application only after the client's ownership facts are confirmed. See the cover note.]

15. [Response to be drafted when the Notice is served.]

[CONFORM: Prayer for relief.]

Applicant denies that Opposer is entitled to the relief it requests, or to any relief.

Part II: Amplification of Denials and Affirmative Defenses

Applicant pleads the matters in this Part to amplify its denials and, where a matter is identified as a defense, to assert it in the alternative. By pleading a matter, Applicant does not assume a burden of proof that the law places on Opposer.

A. The marks differ in appearance, sound, meaning, and commercial impression

16. Applicant's Mark begins with SIR, a complete English word and a title of address. Opposer's mark begins with the two letters SI. The first portion of a mark is the portion that purchasers notice and remember first, and the first portions of these two marks differ in length, in sound, and in meaning.

17. Opposer has told the USPTO that the letters SI in SICHARGE will be understood as a reference to Opposer's own name. In its Response to Office Action filed on February 15, 2019, in the prosecution of the application that matured into Registration No. 5790235 (Serial No. 79233294), Opposer stated that "the letters SI- preceding the word CHARGE in the Applicant's Mark immediately will be associated with the Applicant's name, 'Siemens.'" (Response at 2.) Opposer further stated that "SI- in the Applicant's mark will be pronounced with a clear 'ess' sound either as 'sigh' or 'see.'" (Response at 3.) The word SIR is not associated with Opposer's name, and Applicant's Mark begins with the sound of the English word "sir," not "sigh" or "see."

18. Applicant's Mark as a whole conveys the English title SIR and a play on the English word "surcharge." SICHARGE, by Opposer's own account, conveys "SIEMENS CHARGE." (Response at 2.) The marks therefore differ in meaning and commercial impression, and they are not likely to be confused in the minds of ordinary purchasers.

B. CHARGE is highly descriptive of the identified goods and services, and the field is crowded

19. The word CHARGE describes the function of electric vehicle charging goods and services. Opposer said so to the USPTO in the same Response, stating that "the common suffix of the Applicant's and Registrant's Marks is the highly descriptive word CHARGE which directly describes the function of the Registrant's goods." (Response at 3.)

20. Opposer also told the USPTO in the same Response that "the register reflects the narrow range of protection which has been afforded to the suffix -CHARGE when used in connection with goods associated chargers or charging devices in Class 9," and that "over 261 marks for these types of goods contain the word CHARGE." (Response at 4.)

21. Since the SICHARGE registration issued in 2019, the USPTO has registered additional marks of the form S plus a word plus CHARGE for electric vehicle charging goods and services, including SPARKCHARGE, Registration No. 7164242 (registered September 12, 2023), which covers "charging station services for electric vehicles" and "installation, maintenance, and repair of electric vehicle charging stations and charging equipment" in Class 37; SPARKCHARGE, Registration No. 6163366 (registered September 29, 2020); and SHORECHARGE, Registration No. 7655264 (registered January 14, 2025), which covers installation of wiring and power supply equipment for electric vehicle recharging stations in Class 37. On information and belief, Opposer did not oppose or seek to cancel those registrations, and, on information and belief, more than one hundred live registrations and applications in Class 37 for marks that contain CHARGE identify electric vehicle charging services.

22. Because CHARGE is descriptive and widely used by others for electric vehicle charging, consumers distinguish among CHARGE-formative marks by their other elements, and the scope of protection of SICHARGE does not extend to a mark that differs from it in those other elements, as SIRCHARGE does.

C. Opposer's SI- prefix identifies Opposer, and SIR does not

23. Opposer told the USPTO in the same Response that it owned approximately 162 applications and registrations for marks beginning with SI-, and that purchasers therefore associate SI- with Opposer. (Response at 2.) Without adopting Opposer's account as a statement of fact, Applicant notes that on Opposer's own account SI- functions as an identifier of Opposer. SIR is a different and complete word, and purchasers who read SI- as a reference to Opposer will not read SIR in that way.

D. Affirmative and other defenses

First Defense: Failure to State a Claim

[Include this defense only if the Notice has an actual pleading defect; see the cover note.]

24. To the extent the Notice relies on registrations that Opposer does not own, asserts a family of marks without alleging facts that would establish the use and recognition of the claimed family, or asserts dilution without alleging that a pleaded mark was famous before the earliest date on which Applicant may rely, the Notice fails to state a claim on which relief can be granted. Fed. R. Civ. P. 12(b)(6).

Second Defense: Entitlement to Registration with a Restricted Identification (Section 18, 15 U.S.C. § 1068; 37 C.F.R. § 2.133)

25. Applicant denies that any likelihood of confusion exists. If, contrary to that denial, the Board finds that registration of Applicant's Mark for the services as presently identified would be likely to cause confusion with a mark that Opposer has properly pleaded, Applicant is entitled to registration of its mark for the following restricted identification in Class 37: "Mobile, on-demand roadside electric vehicle battery charging services [rendered to individual electric vehicle owners and drivers], none of the foregoing relating to the sale, installation, repair or maintenance of electric vehicle charging stations."

26. The restriction would avoid any likelihood of confusion, because it would confine Applicant's services to a different kind of service, rendered to different purchasers, and offered through different channels from the goods and services of Opposer. On information and belief, Opposer does not use SICHARGE or any other mark pleaded in the Notice in connection with mobile, on-demand roadside electric vehicle battery charging services, and Opposer therefore will not be prejudiced by the exclusion of other services from the Application.

27. Applicant will move under 37 C.F.R. § 2.133(a) for entry of the restriction at the time the Board directs. If the Board finds at final decision that Applicant is entitled to registration only with the restriction, Applicant requests time under 37 C.F.R. § 2.133(b) to move to amend the Application to conform to that finding.

[OPTIONAL] Counterclaim for Restriction of Registration No. 5790235

[OPTIONAL. File with the Answer, with the fee of $600 per class, 37 C.F.R. § 2.6(a)(16)(ii), if the cover note's recommendation is accepted. Delete this Part if not filed.]

Counterclaim Plaintiff Christopher Stephen Hilts ("Applicant"), for his counterclaim against Counterclaim Defendant Siemens Aktiengesellschaft ("Opposer") under Section 18 of the Trademark Act, 15 U.S.C. § 1068, and 37 C.F.R. §§ 2.106(b)(3) and 2.133(d), alleges:

1. Opposer has pleaded Registration No. 5790235 for the mark SICHARGE (the "SICHARGE Registration") in the Notice. Applicant's entitlement to bring this counterclaim is inherent in his position as the defendant in this proceeding.

2. The SICHARGE Registration issued on the Principal Register on July 2, 2019, on an extension of protection under Section 66(a) of the Trademark Act of International Registration No. 1404839. The records of the USPTO identify Opposer as the owner of record. The registration recites, in Class 9, "Apparatus and instruments for controlling electricity, in particular charging stations for electric vehicles," and, in Class 37, "Installation, repair and maintenance of apparatus and instruments for regulating electricity, installation, repair and maintenance of charging stations for electric vehicles."

3. Applicant denies that his mark is likely to cause confusion with SICHARGE. In the alternative, if the Board finds that registration of Applicant's mark for the services identified in the Application, or for any restricted identification, would be likely to cause confusion with the SICHARGE Registration as it now reads, that finding would rest on the breadth of the

registration's identification of goods and services, and the restriction requested below would avoid the confusion.

4. The identification in Class 37 of the SICHARGE Registration is not limited by the type of charging system, the class of customer, or the channels of trade.

5. On information and belief, Opposer and its affiliates have used SICHARGE in the United States, if at all, for high-power direct-current charging systems sold to commercial vehicle fleets and to transit and airport depots, and for installation and related services rendered to those customers, and have not used SICHARGE for charging goods or services directed to individual electric vehicle owners or drivers, or for mobile, on-demand, or roadside charging services.

6. Applicant requests that the SICHARGE Registration be restricted under Section 18 and 37 C.F.R. § 2.133 as follows:

Class 37: "Installation, repair and maintenance of apparatus and instruments for regulating electricity, installation, repair and maintenance of charging stations for electric vehicles, all of the foregoing being limited to high-power direct-current charging systems for commercial vehicle fleets and depots, and excluding mobile, on-demand and roadside electric vehicle charging services and services for individual electric vehicle owners."

[OPTIONAL Class 9, additional fee of $600:]

"Apparatus and instruments for controlling electricity, in particular charging stations for electric vehicles, all of the foregoing being high-power direct-current charging systems for commercial vehicle fleets and depots, and excluding charging apparatus for individual consumer, residential, or roadside use."

7. The requested restriction would avoid a likelihood of confusion between Applicant's mark and SICHARGE, because it would delineate the goods, services, customers, and channels of trade of the SICHARGE Registration from those of the Application.

8. On information and belief, Opposer is not using SICHARGE in connection with the goods and services that the requested restriction would exclude from the SICHARGE Registration.

9. This counterclaim does not allege that the SICHARGE Registration is invalid and does not seek cancellation of the registration on any ground to which the limits of Section 14 of the Trademark Act, 15 U.S.C. § 1064, apply. It seeks the equitable relief that Section 18 provides.

Prayer for Relief

WHEREFORE, Applicant requests that the Board dismiss this opposition with prejudice and permit the Application to proceed to registration; in the alternative, that the Board find that Applicant is entitled to registration of Applicant's Mark for the restricted identification stated in paragraph 25 above; [and, on the counterclaim, that the Board restrict Registration No. 5790235 as stated in paragraph 6 of the Counterclaim;] and that the Board grant such further relief as it deems just.

Dated: [_____], 2026

Respectfully submitted,
AWAD LAW P.C.

/[David Awad: signer to enter personally]/

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CERTIFICATE OF SERVICE

I hereby certify that on [_____], 2026, a true and complete copy of the foregoing Applicant's Answer and Affirmative Defenses to Notice of Opposition [and Counterclaim] was served by email on:

Aubrey A. Biache, counsel of record for Opposer Siemens Aktiengesellschaft
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/[David Awad: signer to enter personally]/

David Awad
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